

AML/CFT Public Statement

Legal Services

Protecting our clients and New Zealand's financial system

This public statement explains why Bird & Yang Law Limited may ask clients to provide identification, ownership, authority, and financial information before or during certain legal matters. It is intended as general public information and should be read together with our engagement letter, Client Care Information, and any matter-specific AML/CFT (the Anti-Money Laundering and Countering Financing of Terrorism) requests we provide to you.

Our legal obligations

Bird & Yang Law Limited is committed to providing professional, ethical, and compliant legal services. As a New Zealand law firm, we are required to comply with the Anti-Money Laundering and Countering Financing of Terrorism Act 2009, related regulations, and applicable regulatory guidance.

When we provide legal services that are covered by the AML/CFT regime, we must complete appropriate checks before we can act, continue to act, receive or move funds, or complete certain transactions.

Why we ask for information

Before we can act for a client, or continue acting on certain matters, we may need to complete Customer Due Diligence (CDD). This is a standard legal compliance process and is not a reflection of our trust in any individual client.

CDD helps us understand who our client is, who owns or controls a company, trust, or other entity, who is acting on behalf of a client, the nature and purpose of the proposed legal work, and where relevant, the source of funds or source of wealth connected with a transaction.

What information we may need

Depending on the nature of your matter, we may ask for proof of identity, proof of residential address, company or trust information, details of beneficial owners and controlling persons, authority for anyone acting on behalf of a client, and information about the nature and purpose of the legal work.

For companies, trusts, partnerships, estates, or other entities, we may need information about directors, shareholders, trustees, beneficiaries, settlors, protectors, authorised persons, and any individuals who ultimately own or control the client or the transaction.

Legal matters where AML/CFT checks may be required

AML/CFT checks may be required for a range of legal matters, including property transactions, conveyancing, business purchases or sales, company or trust establishment, trust and estate matters, transactions involving our client account, cross-border transactions, or other matters involving significant funds or ownership structures.

Some legal matters are more time-sensitive than others. In property settlements, business completions, or urgent transactions, delays in providing AML/CFT information may delay our ability to proceed.

Source of funds and source of wealth

Source of funds generally means the origin of the money used for a specific transaction, such as savings, salary, business income, loan proceeds, sale proceeds, inheritance, investment returns, or funds from another lawful source.

Source of wealth generally means how a person or entity generated their overall wealth or assets. In some matters, we may need to ask how wealth was accumulated and request supporting documents.

Examples of supporting documents may include bank statements, loan documents, sale and purchase agreements, employment income records, business financial records, investment records, inheritance documents, accountant confirmations, solicitor confirmations, or other relevant evidence.

When information must be provided

We will let you know what information is required as early as possible. In many cases, we cannot begin work, continue work, receive funds into our client account, make payments, or complete a transaction until the required AML/CFT checks have been completed.

Providing complete and accurate information promptly helps avoid delays and allows us to progress your matter efficiently.

How we protect your information

We treat all AML/CFT information seriously and confidentially. Information provided for AML/CFT purposes will be handled securely and used for compliance, client verification, matter management, and related legal obligations.

We will not disclose your information except where authorised by you, or where required or permitted by law. We also maintain internal policies, procedures, staff training, record-keeping processes, and periodic reviews to support our AML/CFT compliance obligations.

Our risk-based approach

Bird & Yang Law Limited takes a practical, risk-based approach to AML/CFT compliance. This means we consider the nature of the client, the type of legal matter, the source and movement of funds, the countries or institutions involved, ownership or control structures, and any other relevant risk factors.

Where required, we may need to complete enhanced due diligence, ask follow-up questions, request additional documents, or update information during the course of a matter.

Our client account is used only for legitimate client transactions and proper legal purposes. We do not provide banking services. We do not accept cash except in very limited circumstances and only where approved in accordance with our internal policies.

AML/CFT administration costs

Completing AML/CFT checks requires time and administrative resources. In some matters, an AML/CFT administration fee may apply. The amount will depend on the nature and complexity of the matter, the level of due diligence required, and the time involved in reviewing and verifying information.

Where additional or enhanced due diligence is required, we will work with you to make the process as clear and efficient as possible.

Questions

If you have any questions about our AML/CFT requirements, please contact us before providing documents or funds for your matter.

Contact

520 Mount Albert Road, Three Kings, Auckland 1042

Phone: 09 217 6231

Email: info@birdyang.co.nz

Website: www.birdyang.co.nz